

24STCV27174 24STCV27174

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 24STCV27174 Hearing Date: September 10, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ILAN N. ROSEN JANFAZA,

Plaintiff,

vs.

JPMORGAN CHASE & CO.,

Defendant.

Case No.:

24STCV27174

Hearing Date:

September 10, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER

RE:

PLAINTIFF ILAN N. ROSEN JANFAZA'S MOTION FOR LEAVE TO FILE FIRST
AMENDED COMPLAINT

Background

On October 16, 2024, Plaintiff

Ilan N. Rosen Janfaza ("Plaintiff") filed this action against Defendant JPMorgan Chase Bank, N.A. (erroneously sued as JPMorgan Chase & Co.) ("Chase"), alleging one cause of action for breach of contract.

On April 29, 2026, the

Court sustained Chase's demurrer to Plaintiff's Complaint, with 20 days' leave to amend.

On June 12, 2026,

Plaintiff filed a First Amended Complaint ("FAC") against Chase, alleging four causes of action for (1) breach of written contract, as modified, waived, confirmed, and/or ratified, (2) breach of oral contract, (3) promissory estoppel, and (4) declaratory relief.

Now, Plaintiff moves for leave to file a FAC. Plaintiff's notice of motion states that "Defense counsel and Plaintiff's counsel have met and conferred on this matter, and Defendants do not oppose Plaintiff's motion." (Notice of Mot., 2:14-15.) Chase filed a notice of non-opposition, stating that it "does not intend to file or serve any opposition to Plaintiff's Motion for Leave to File First Amended Complaint or provide any oral argument in opposition to the Motion if it proceeds to hearing." (Non-Opp., 2:3-5.)

Discussion

In support of the instant

motion, Plaintiff explains, inter alia, that "[o]n April 29, 2026, the Court heard Defendant's demurrer and sustained the demurrer with leave to amend." (Janfaza Decl., ¶ 9.) "The Court's ruling identified, among other matters, the need to more clearly plead whether Plaintiff's contractual theory

was based upon a written or oral agreement and to sufficiently allege the terms and legal effect of any written agreement.” (Janfaza Decl., ¶ 9.) “I thereafter prepared the proposed First Amended Complaint attached hereto as Exhibit A, and filed this amended complaint.” (Janfaza Decl., ¶ 10.)

As a preliminary matter, and as noted by Plaintiff above, Plaintiff filed the FAC in response to the Court sustaining Chase’s demurrer to Plaintiff’s Complaint, with leave to amend, on April 29, 2026. In the April 29, 2026 Order, the Court gave Plaintiff 20 days’ leave to amend, making the amended complaint due by May 19, 2026. However, Plaintiff did not file an amended complaint. Instead, Plaintiff filed the FAC on June 12, 2026, which the Clerk entered on June 19, 2026. Chase did not object or move to strike the FAC, just as Chase does not oppose the instant motion. Thereafter, on August 18, 2026, Plaintiff moved for leave to file the FAC in the instant motion. However, the FAC Plaintiff filed on June 12, 2026, and the FAC connected to the instant motion appear to be identical. Plaintiff seeks leave to amend, but if the Court grants Plaintiff’s requested relief, Plaintiff will have filed two identical FACs; additionally, the Clerk would likely reject a second FAC. Although Plaintiff should have sought relief when he initially filed the untimely FAC, Plaintiff did not, and the Clerk entered the FAC. Thus, the instant motion is denied as moot because the FAC is already the operative pleading in this action.

Conclusion

In light of the foregoing, Plaintiff’s motion for leave to file a First Amended Complaint is DENIED as MOOT.

Plaintiff is ordered to give notice of this Order.

DATED: September 10, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court